



LAW

Mailed 9/5/2025

M.D.

Re: [REDACTED] vs. Costco

WCAB No: [REDACTED]

Claim No: [REDACTED]

Date of Injury: [REDACTED]

Dear Dr. [REDACTED]

We greatly appreciate your agreement to evaluate [REDACTED] as a Panel Qualified Medical Examiner in the specialty of Orthopedic. The applicant's examination is scheduled to take place on September 9, 2025, at 9 a.m. The respective parties involved will be sending separate letters to you.

[REDACTED] is currently employed as a Supervisor at Costco and claims to have sustained an injury to his left knee and lumbar spine within the course and scope of their employment. The injury occurred on 07/24/24 while bending down on his right foot, his left foot got caught on the steel causing his knee to buckle.

We kindly request your expertise in conducting a comprehensive medical examination, including all necessary tests, while excluding any that would require hospitalization.

During the examination, please obtain a medical history from the applicant and thoroughly review the provided file. Enclosed, you will find an Addendum that lists relevant documents being provided to you, such as claim forms, Application(s) for Adjudication of Claim, subpoenaed records, and medical records. It is crucial to review and provide comments on these records as part of your med-legal report. We have included only records not previously provided by the defense to prevent duplication.

In your report, we kindly ask you to provide an objective opinion on the following aspects: diagnosis, causation, prognosis, periods of temporary total disability (if applicable), nature and extent of any permanent impairment, need for further medical treatment, apportionment, the applicant's residual functional capacity, and their ability to return to their usual and customary occupation. Additionally, we request your response to the following specific interrogatories:

- 1) Please evaluate the applicant within your area of medical expertise. If you discover new diagnoses, we request that you inform the requesting party and the individual, and provide recommendations for further medical treatment, if necessary, as per the AMA Guides, 5th Edition, Page 18. Please comment upon or otherwise make recommendations in the event

you believe any medical referrals are necessary in relation to the evaluation of applicant's medical conditions to the extent you believe they exist.

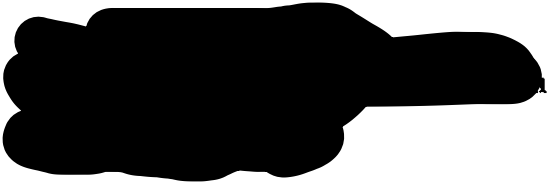
- 2) Did the applicant experience an injury related to their occupation as the result of a specific incident, continuous trauma, or a combination of both?
 - i) If the injury is determined to be industrially caused, please specify whether it resulted from a specific incident, one or more periods of cumulative trauma, or a combination thereof. If disability is a result, either wholly or partially, of one or more periods of cumulative trauma, please provide your opinion on when each period of cumulative trauma began and ended.
- 3) Is the applicant temporarily totally disabled (TTD) as the result of industrially caused or aggravated injury or injuries -OR- was the applicant TTD as the result of industrially caused or aggravated injury or injuries that occurred while this claim was pending? If so:
 - i) Is the disability considered temporary total?
 - ii) Is the disability considered temporary partial? If so, please state the extent of the applicant's ability to work.
 - iii) If appropriate, indicate the period(s) of temporary total and/or partial disability.
- 4) If the applicant's condition has reached maximum medical improvement and is ready for rating:
 - i) Please indicate when the condition became permanent and stationary.
 - ii) Utilize the descriptions and measurements in the AMA Guides to the Evaluation of Permanent Impairment, 5th Edition to describe the permanent impairment attributable to industrial causation or aggravation. Provide a detailed analysis by citing the relevant chapters, page numbers, table numbers, and figure numbers.
 - (1) Applicant has made a claim of industrial injury to the spine. Therefore, pursuant to Chapter 15 of the *AMA Guides*, please consider both the DRE and Range of Motion methods of evaluating spinal impairments. Please, also, indicate which method provides most accurate reflection of Applicant's spinal impairment, if any.
 - (2) Please consider whether applicant has a chronic pain condition, and, if so, what is causing this chronic pain syndrome? Is it physiologically based or non-physiologically based?
 - (a) Consider whether the applicant's condition has stabilized to an extent suitable for a Whole Person Impairment (WPI) rating. If applicable, evaluate whether a rating under Chapter 13, including Table 13-22, provides a more accurate WPI rating of Applicant's disability with respect to Activities of Daily Living (ADL) functioning.
 - iii) Additionally, evaluate impairment based on the principles outlined in Almaraz/Guzman case law. Based on your judgment, experience, training, and skill, provide your expert opinion on the injured employee's WPI using the chapter, table, or

method of assessing impairment from the AMA Guides that most accurately reflects the employee's impairment.

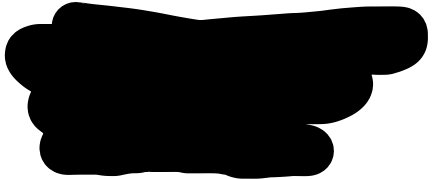
- iv) Assess whether there is a synergistic effect of one injury on another and whether the simple addition of impairments would provide a more accurate depiction of the applicant's overall impairment, rather than using the CVC reduction method as employed by the WCAB in Kite. Please explain why there was a synergistic effect of one injury on the opposite injury.
- 5) State how the applicant's industrially related medical conditions affect their activities of daily living, as defined in Chapter 1, Table 1-2 on page 4 of the AMA Guides.
- 6) Describe how the applicant's impairment impacts their ability to perform work activities. Determine whether the impairment rating based on the AMA Guides accurately describes the effect on the applicant's ability to work. If the rating is disproportionate or inequitable in comparison to the effect on work activities, provide an alternative impairment rating that you consider more accurate. Explain the rationale behind your alternative rating.
- 7) Is there any apportionment of permanent impairment in accordance with Labor Code Section 4663 or 4664? Indicate with reasonable medical probability the percentage of permanent disability directly resulting from the work-related injury and treatment, and the percentage caused by other factors, including prior and subsequent industrial injuries or non-industrial factors. Provide the reasoning for your conclusions, including how and why apportionment of permanent disability can be attributed to factors other than industrial injury/ies.
 - i) Note that, according to Labor Code §4664, if an injured worker has received a prior award of permanent disability, it is conclusively presumed that the prior permanent disability exists at the time of any subsequent injury.
- 8) State if further medical treatment is reasonably necessary to cure or relieve the effects of the injury(ies). If treatment is necessary, describe the scope and extent of such treatment. The recommended standards of "reasonable and necessary medical treatment" can be found in the ACOEM Guidelines.
- 9) Can the applicant return to their usual and customary work duties? If not, indicate the applicant's residual functional capacities and complete the Physician's Return-to-Work & Voucher Report (DWC AD Form 10133.36 for injuries on or after 1/1/13).
- 10) Has the applicant self-procured any medical treatment for the condition(s) in question? If so, assess the reasonableness and necessity of such self-procured treatment to cure or relieve the effects of any industrial injuries.

Please send the original report and one copy to one of the parties and provide a single copy to all other parties listed below. The original report will be filed at the WCAB by the party who receives it from your office. **Submit your bill to:**

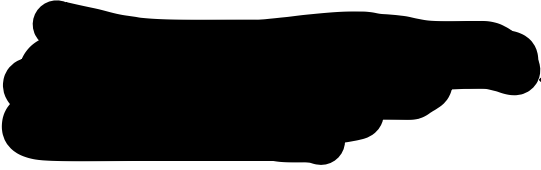

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Thank you for your assistance in resolving the medical issues in this case.

Very truly yours,


Attorney at Law

Enclosures as noted

Cc: 

Schedule of Records

Re:

WCAB No:

Claim No:

Date of Injury:

Date of Examination:

MEDICAL REPORTS:

DATED:

07/24/2025, 06/12/2025, 05/15/2025,
04/07/2025, 04/03/2025, 03/06/2025,
02/06/2025, 12/13/2024, 11/15/2024,
10/18/2024

06/16/2025, 04/30/2025, 03/17/2025,
12/13/2024

01/30/2025

10/09/2024

SUBPOENAED RECORDS:

12/30/2024

Kaiser Permanente

11/14/2024

NON-MEDICAL RECORDS:

Notification

09/09/2024

Amended Application

03/21/2025

Claim Form

08/28/2024